

§ 542. Order of filiation. (a) If the court finds the male party is the father of the child, it shall make an order of filiation, declaring paternity. Such order shall contain the social security number of the declared father.

(b) If the respondent willfully fails to appear before the court subsequent to the administration and analysis of a genetic marker test or DNA test administered pursuant to sections four hundred eighteen and five hundred thirty-two of this act or section one hundred eleven-k of the social services law, and if such test does not exclude the respondent as being the father of the child or the court determines that there exists clear and convincing evidence of paternity, the court shall enter an order of temporary support notwithstanding that paternity of such child has not been established nor an order of filiation entered against the respondent. The respondent shall be prospectively relieved from liability for support under such order of temporary support upon the respondent's appearance before the court.

(c) If the respondent willfully fails to comply with an order made by either the court pursuant to sections four hundred eighteen and five hundred thirty-two of this act or by a social services official or designee pursuant to section one hundred eleven-k of the social services law, and willfully fails to appear before the court when otherwise required, the court shall enter an order of temporary support notwithstanding that paternity of the subject child has not been established nor an order of filiation entered against the respondent. The respondent shall be prospectively relieved from liability for support under such order of temporary support upon the respondent's compliance with such order and subsequent appearance before the court.